

1.

CASE #	CASE NAME	HEARING NAME
CVRI2602288	SOUSA vs APEX SITE SOLUTIONS, INC.	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Appearances requested to discuss the substantive unconscionability issue.

2.

CASE #	CASE NAME	HEARING NAME
CVSW2402801	MACIAS vs D.R. HORTON LOS ANGELES HOLDING COMPANY, INC.	PLAINTIFF'S MOTION FOR EVIDENTIARY AND ISSUE SANCTIONS AGAINST DEFENDANT FOR SPOILIATION OF EVIDENCE

Tentative Ruling: A party has a duty to preserve evidence. Failure to preserve evidence for another party's use in pending or future litigation is a serious form of discovery abuse. *Victor Valley Union High School Dist. v. Superior Court* (2023) 91 Cal.App.5th 1121, 1139. Sections can include an evidentiary inference that the evidence that was destroyed or rendered unavailable was unfavorable to the party that did not preserve it. Sanctions can include issue sanctions or precluding the *Cedars-Sinai Medical Center v. Superior Court* (1998) 18 Cal.4th 1, 8, 11-12. offending party from supporting or opposing designated claims or defenses. It appears undisputed that certain evidence was not preserved. Appearances requested.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2404634	CORNEJO VS. BEAUMONT MANOR, LLC	STIPULATION TO APPROVE PAGA SETTLEMENT

Tentative Ruling: Appearances requested to confirm that this settlement includes the individual claims originally made in the related action, CVRI2403435. Need to select date for review of administrator's report (order, ¶ 12).